4792

Executive Order

Revoked
2 FR 1324

Prescribing rules for the District Court of the Canal Zone relating to clerks of the court, the bonds to be given by them, and the handling and deposit of money in the registry of the court.

By authority of law, the following rules of practice are prescribed for the District Court of the Canal Zone:

Section 1: All bonds, undertakings and stipulations of whatever nature, given in actions hereafter commenced or which may now be pending in the District Court of the Canal Zone, when deposited in the registry of the court, must be filed by the Clerk, and a record thereof made by him in the appropriate record of the court. When so deposited, the same shall be deemed to be in the registry of the court.

Section 2: Every sum of money deposited with a clerk of said court, by or for the use of any party, upon a judgment of the court or in a pending action or proceeding by virtue of the law or by direction of the court, as soon as deposited with the Clerk, shall be deemed to be in the registry of the court.

Section 3: The Clerk shall deposit in some depository designated by the judge of said court, in the name of the "District Court, Canal Zone", every sum of money deposited in the registry of the court which exceeds $200.00, as soon as the same is received; and such money may thereafter be paid out only on a check, voucher, or order of the court, or the judge thereof, countersigned by a clerk of the court. The clerk in each division of the District Court of the Canal Zone shall make a record showing the date of receipt, the amount received, from whom received, and the case in which any such money is deposited in the registry of the court; and the date, amount, and to whom the same was paid out.

Section 4: The clerk shall maintain a general deposit account in a designated depository in which shall be deposited, except as hereafter provided, every cash fund exceeding $200.00 deposited in the registry of the court. Interest earned on such general account shall be retained by the clerk as his commission for receiving and caring therefor and shall be accounted for by him as fees of his office. No commission shall be charged by the clerk for handling any fund of $200.00 or less.

In any case, however, where any such fund is likely to remain in the registry of the court for six months or more, and where the parties so stipulate or the court so directs, such fund shall be deposited in a designated bank in a savings account at interest. The clerk's commission for caring for such fund in such case shall be paid only out of interest earned thereon, to the amount of one-fourth of such interest. The remainder of such interest shall be deemed a part of such fund and shall be paid out on order or decree of the court according to the exigency of the case.

Section 5: The Judge of the District Court of the Canal Zone shall designate one or more depositories in which money deposited in the registry of the court shall be deposited by the clerks.

Section 6: The clerk and each of his assistants and an acting clerk, before entering upon the duties of the office, shall give a bond to "The Panama Canal" in the penal sum of $5,000.00 for the faithful performance of such duties. Such bond shall be deemed for the benefit of The Panama Canal or any person, firm or corporation damaged by a breach thereof.

Section 7: The word "clerk" as used in this order shall include the clerk of the District Court, the assistant clerks thereof, and any acting clerk when performing the duties of the clerk or assistant clerk when they or any of them are absent on account of illness or vacation, or are unable to act from any cause.

Section 8: That part of Section 812 of the Code of Civil Procedure of the Canal Zone providing for a commission to be charged by the clerk for receiving and caring for money, and all rules and regulations in conflict with the foregoing provisions, are hereby repealed.

CALVIN COOLIDGE

THE WHITE HOUSE,
January 3, 1928.

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